

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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NICOLA ROSS and T. W., an infant by her legal
guardian JUDITH WALKER, and JUDITH WALKER,
Individually,

Index No.:

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK and POLICE OFFICER
CUNNINGHAM, POLICE OFFICER DUIGNAN and
POLICE OFFICER "JOHN DOE",
(fictitious name, real name unknown")

Defendants.

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Plaintiff, as and for his Complaint, by and through his attorney, the LAW
OFFICES OF SEAN H. ROONEY, complaining of the defendants, respectfully sets forth
and alleges upon information and belief as follows:

1. That at all the times herein alleged, and upon information and belief,
plaintiffs were and still are resident of the County of Kings, City and State of New York.
2. That at all the times herein alleged, and upon information and belief,
plaintiff JUDITH WALKER was and is the legal guardian for plaintiff T. W.
3. That the defendant THE CITY OF NEW YORK (hereinafter "CITY") was
and still is a Municipal Corporation duly organized and existing under and by virtue of
the laws of the State of New York.
4. Upon information and belief, that at all times hereinafter mentioned,
Defendant POLICE OFFICER CUNNINGHAM (hereinafter "P.O. CUNNINGHAM") was
and still is a resident of the State of New York.

5. Upon information and belief, that at all times hereinafter mentioned, Defendant POLICE OFFICER DUIGNAN (hereinafter "P.O. DUIGNAN") was and still is a resident of the State of New York.

6. Upon information and belief, that at all times hereinafter mentioned, Defendant POLICE OFFICER "JOHN DOE" (hereinafter "OFFICER") was and still is a resident of the State of New York.

7. That at all times hereinafter mentioned defendant P.O. CUNNINGHAM was and still is an officer in the Police Department of the CITY OF NEW YORK. Suit is being brought against him individually and in his official capacity.

8. That at all times hereinafter mentioned defendant P.O. DUIGNAN was and still is an officer in the Police Department of the CITY OF NEW YORK. Suit is being brought against him individually and in his official capacity.

9. That at all times hereinafter mentioned defendant OFFICER, was and still is an officer in the Police Department of the CITY OF NEW YORK. Suit is being brought against him individually and in his official capacity.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST
THE DEFENDANT CITY OF NEW YORK**

10. That at the time of the aforesaid occurrence the defendants were acting as an employee and agent of the CITY OF NEW YORK within the scope of their authority, and under color of law.

11. That on or about September 20, 2021, at approximately 6:00PM, while Plaintiffs were lawfully in the premises located at 937 E.95th Street, Brooklyn, New York, the defendants in the scope of their employment, as police officer and in connection with an illegal and false arrest, accosted the Plaintiffs, physically and verbally

abused/assaulted the Plaintiff, illegally and/or forcibly handcuffed plaintiff(s), unlawfully detained plaintiffs at the aforementioned premises, in a police vehicle, the 69th Precinct, holding cell and/or other locations, confined Plaintiffs until their release, and otherwise harmed the Plaintiffs.

12. That during the aforesaid assault, the Defendant police officer repeatedly and without justification called Plaintiffs names, cursed at them, threatened and verbally tormented them.

13. That in connection with the aforementioned assault, said defendants were accompanied by another police officer, whose name is unknown to Plaintiffs, who joined in the assault, false arrest and unlawful confinement of the Plaintiffs.

14. That the aforesaid assault took place in a public in front of other people, many of whom knew the Plaintiffs, much to Plaintiffs' dismay and humiliation.

15. That the aforesaid acts were the result of brutal, wanton and malicious conduct on the part of the Defendant police officers, and at no time did Plaintiffs provoke or cause any of the aforesaid conduct and in no way was the aforesaid conduct justified or reasonable.

16. That at no time did Plaintiffs commit any crime, break any law, or do any wrong.

17. That solely by reason of the foregoing, the Plaintiffs sustained serious and severe personal and psychological injuries.

18. That solely by reason of the foregoing, the Plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST
THE DEFENDANT CITY OF NEW YORK

19. The Plaintiffs repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "18" as if fully set forth herein at length.

20. That at the time and place aforesaid, the Defendant police officers, while acting within the scope of their employment by the Defendant CITY, were negligent and grossly negligent and careless in taking custody the Plaintiffs.

21. That such negligence and gross negligence consisted of, among other things, that they failed to properly investigate the situation; failed to ascertain the truth of the situation, which could have been ascertained upon reasonable inquiry; failed to discuss the situation with witnesses that were available; took drastic action on an unsubstantiated charge without any further verification or insufficient verification when the situation was not an emergency situation; misjudged and over judged the amount of force necessary to take into custody the Plaintiff; failed to take proper precautions to prevent unnecessary and severe physical and psychological injury to the Plaintiffs while taking plaintiffs into custody; failed to exercise the proper care and caution in taking the Plaintiff into custody; failed to adequately supervise its employs pertaining to proper use of force when taking persons into custody; and was otherwise careless and negligent.

22. That the injuries aforesaid were due to the negligence and gross negligence of the Defendants and the Plaintiffs having in no way contributed thereto.

23. That as a result of the aforesaid, Plaintiffs suffered severe personal and psychological injuries herein above alleged.

24. That solely by reason of the foregoing, the Plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST
THE DEFENDANT CITY OF NEW YORK

25. The Plaintiffs repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "24" as if fully set forth herein at length.

26. That on September 20, 2021, the Plaintiffs were falsely arrested without a warrant by the Defendant police officers acting on behalf of the Defendant CITY.

27. That at the aforesaid time and place, and in connection with the aforesaid arrest, the Defendant police officers handcuffed and detained the Plaintiffs in a public place, in a police vehicle, at the 69th Precinct and holding cell, and other locations, confined Plaintiffs until their release, and otherwise harmed the Plaintiff.

28. That the aforesaid arrest was a false arrest, in that it was without probable cause, without warrant and without just cause or justification.

29. That the aforesaid detention constituted an unlawful detention in that it resulted from an illegal and unlawful arrest with the Defendants having no cause, justification or right to detain the Plaintiffs in their custody.

30. That said arrest was false, groundless and illegal in that Plaintiffs committed no crime, broke no law and did no wrong, and there was no probable cause or just cause to believe they had.

31. That the Plaintiffs' arrest received wide notoriety in his home community in which the arrest occurred, in front of all their friends and acquaintances and in a loud, rambunctious and notorious manner as to attract the attention of all those around.

32. That solely as a result of this false arrest and false imprisonment, the Plaintiffs' health was impaired, plaintiff suffered great mental distress, irreparable

damage to his reputation and character, his earning power was permanently impaired, his record was permanently marred with the false and groundless notation that they were arrested, incurred substantial mental anguish, incurred substantial and permanent psychological disturbance and embarrassment as well as suffered all the injuries as previously alleged herein.

33. That solely by reason of the foregoing, the Plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST
THE DEFENDANT CITY OF NEW YORK**

34. The Plaintiffs repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "32" as if fully set forth herein at length.

35. That on the 20th day of September, 2021, the Defendant police officers in connection with the aforesaid illegal detention and arrest of the Plaintiffs, did intentionally, maliciously, and wantonly torment the Plaintiffs by threatening them, calling them names, cursing at them, and abusing them, all in front of their friends, neighbors and acquaintances in a public place for no reason.

36. That the aforesaid acts were a result of brutal, outrageous and malicious conduct on the part of the Defendant police officer and at no time did the Plaintiffs provoke or cause any of the aforesaid conduct, and in no way was the aforesaid conduct justified or reasonable.

37. That as a result of the aforesaid, the Plaintiffs suffered personal injuries as hereto before alleged, in addition to great mental distress, severe mental anguish,

extreme humiliation, permanent psychological disturbance, embarrassment, intense fear, suffered great pain and distress and was otherwise injured.

38. That solely by reason of the foregoing, the Plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE DEFENDANTS CITY OF NEW YORK AND POLICE OFFICER CUNNINGHAM, POLICE OFFICER DUIGNAN AND POLICE OFFICER "JOHN DOE"

39. The Plaintiffs repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "38" as if fully set forth herein at length.

40. That the aforementioned acts are the result of an actual and defacto policy of the CITY as implemented by its officials, police commissioners and police departments.

41. That the aforesaid occurrences constitute a deprivation of Plaintiff's civil right under Federal Law specifically § 42 U.S.C. Section 1981, 1983, 1998 and the FIRST, FOURTH, FIFTH AND FOURTEENTH AMENDMENTS of the United States Constitution.

42. That the Defendants and their agents and employees have been conferred with "Police Officer Status" and as such, were acting under "Color of Law" and "Color of their Authority as Peace Officers" in effecting the unlawful entry/search, assault, battery and/or imprisonment of Plaintiffs.

43. That the aforesaid actions constitute an unlawful search, unlawful entry, unlawful arrest, unlawful detention, excessive use of force and physical brutality, all in

violation of the FIRST, FOURTH, FIFTH and FOURTEENTH AMENDMENTS of the United States Constitution, as well as 42 U.S.C. Section 1981, 1983 and 1988.

44. That solely as a result of the aforesaid violation of Plaintiffs' rights under the aforesaid Federal Statutes, the Plaintiffs were caused to suffer the injuries that are hereto before alleged, as well as general damages for the violation and deprivation of his liberty, invasion of privacy, and other deprivation of Civil Rights, as well as attorneys fees as provided by said statutes.

45. That solely by reason of the foregoing, the Plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES AGAINST THE DEFENDANT CITY OF NEW YORK

46. That Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the paragraphs of the Complaint numbered "1" through "45" as if fully set forth herein at length.

47. That the aforesaid acts by the Defendants were the result of willful, wanton, outrageous, malicious, illegal, brutal and unconscionable intentions and actions without cause or justification.

48. That as a result of this wanton conduct and gross negligence, Plaintiffs are entitled to recover punitive damages.

49. That solely by reason thereof, Plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

50. That heretofore, the Plaintiffs caused to be served upon the comptroller of the Defendant CITY a Notice of Claim, pursuant to Section 50-e of the General Municipal Law, and more than 30 days have elapsed and the claim was not settled or

adjusted. Said notice was served within 90 days of the occurrence complained of, and this action was commenced within one year and 90 days from the date of said occurrence.

AS AND FOR A SEVENTH CAUSE OF ACTION
NEGLIGENT HIRING/RETENTION AGAINST THE DEFENDANT
CITY OF NEW YORK

51. That Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the paragraphs of the Complaint numbered "1" through "50" as if fully set forth herein at length.

52. That Defendants failed to exercise reasonable care in selecting, hiring, retaining and training Police Officers. At the time defendants hired, retained and trained said police officers, defendants knew or should have reasonable known that said officers would violate the rights of members of the general public and as a direct and proximate result, would cause injuries as alleged herein.

53. As a direct and proximate result of Defendant's negligent selection, hiring, retention and training, plaintiffs have suffered and continues to suffer injuries entitling plaintiff to damages in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF RUTHERFORD DORT

54. Plaintiffs repeat, reiterate and re-allege each and every allegation set forth in paragraphs "1" through "53" as if fully set forth herein.

55. Plaintiff JUDITH WALKER is the legal guardian of infant plaintiff T. W..

56. That by reason of the negligence of the defendant aforesaid, plaintiff JUDITH WALKER has and will have to expend sums of money for the infant plaintiff's care and rehabilitation.

57. Based on the above, the plaintiff JUDITH WALKER, has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

WHEREFORE, the Plaintiff demands Judgment against the Defendants on the First, Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth Causes of Action in an amount which is in excess of the jurisdictional limit of all lower courts that would otherwise have jurisdiction in this matter, together with the costs and disbursements of this action.

Dated: Brooklyn, New York
April 11, 2022

Law Offices of Sean H. Rooney
By: 
SEAN H. ROONEY, ESQ.
Attorneys for Plaintiff

VERIFICATION

STATE OF NEW YORK)
COUNTY OF Kings) s.s.:

I, the undersigned, being duly sworn, depose and say: I am the Plaintiff

in the action; I have read the foregoing Summons and Complaint.

And know the contents thereof; the same is true to my own knowledge, except as to the matters therein state to be alleged on information and belief, and as to those matters I believe it to be true.

X Tereka Williams

Sworn to before me on this 11
day of April, 2022



NOTARY PUBLIC

SEAN H. ROONEY
Notary Public - State of New York
No. 02RO5067378
Qualified in Queens County
Commission Expires 10/18/22

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SUMMONS AND COMPLAINT

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